REGAI CHIPANGA
and
TONDERAI MAZURA
versus
THE STATE

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 20 & 27 July 2026

APPLICATION FOR BAIL PENDING TRIAL

M. Makuvatsine, for the applicants
J. Matsikidze, for the respondent

SIZIBA J:

[1] This is an application for bail pending trial in terms of s 117A (1) of the Criminal Procedure and Evidence Act [*Chapter 09:07*]. It was filed by the applicants' legal practitioners on 14 July 2026. The respondent filed opposing papers and I heard the application on 20 July 2026 and reserved judgment.

[2] The two applicants are facing a charge of robbery in terms of s 126 (1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The State alleges that on 13 November 2025 at 2330 hours, the applicants and their accomplices who are at large proceeded to Wattle Company in Mutare and blasted the storeroom to open it. They allegedly threatened the security guard who was on duty with a pistol and handcuffed him with his own handcuffs. They also allegedly threatened another security guard by firing one round of ammunition into the air. They tied him as well. They then opened the safe by blasting it and stole US$691 713.

[3] The applicants were arrested on 5 March 2026 in Harare in connection with another alleged offence of robbery. The State alleges that upon interview, the applicants confessed having

committed the present offence. The applicants totally deny this allegation. They complained of having been seriously assaulted by the police in Harare after their arrest. They registered this complaint with the Magistrates Court in Harare upon their initial appearance and this information appears in the extract of the record of proceedings which is attached to their application before this court. On 5 July 2026, they were then arrested by the police in Mutare in connection with the present charge.

[4] The applicants totally deny having committed the offence alleged. It is common cause that they were implicated by their alleged accomplices who are now deceased. For the Harare matter, the applicants were granted US$300 bail on 27 April 2026. State counsel in the said matter has sought permission from his or her supervisors to withdraw those charges on the basis that there is no evidence to connect the applicants to the case.

[5] What the State seems to be also relying on to link the two applicants to the robbery crime for is their manner of spending soon after the alleged offence. The first applicant was found having purchased 2 Probox motor vehicles and another Honda Vessel motor vehicle. He alleges to be a farmer in Rusape. The second applicant bought house number 3543 Glaudina Park, Harare on 17 November 2025. He alleges to be a Pastor at Christian Salvation Centre.

[6] Bail is now a Constitutional right in terms of s 50 (1) (d) of the Constitution of Zimbabwe. This position is trite. This right is denied where there are compelling reasons to justify the incarceration of a suspect pending trial. In third schedule offences of this nature, s 115C (2) is explicit and it is trite that an applicant bears the onus to prove on a balance of probabilities that his or her admission to bail pending trial will not defeat the ends of justice. See *Chiwanza* v *S* HH 129/26.

[7] There are questions that remain unanswered pertaining to applicant's spending spree just after the alleged robbery of 13 November 2025. Counsel for the State questioned how the second applicant could have bought house number 3543 Glaudina, Harare from the

proceeds of selling house number 438 Glaudina, Harare when in the agreement of sale of the former house, he indicated his address as number 438 Glaudina, Harare. Applicants' counsel submitted that there may have been a lease agreement between second applicant and the purchaser which made it possible for him to continue residing at that property after selling it. This was pure speculation. There was no supporting affidavit to that effect from the seller of that house which was bought by the second applicant. There are no details of how the purchase price was transferred or paid.

[8] Applicants' counsel again conceded that the first applicant had purchased the three motor vehicles between November 2025 and December 2025. This was the relevant time of the alleged crime. No names were given of the individuals who sold the motor vehicles to the first applicant. No registration books were supplied. The court is alive that some of these are triable issues and that the applicants are still presumed innocent. However, the applicants must demonstrate to this court that it is safe to admit them to bail. They are facing a serious allegation. Their main argument in seeking bail is that the State has a weak case against them and that nothing links them to the alleged crime. It rests upon them therefore to be very candid enough about their manner of spending at the relevant time. Their submission that they are not linked to the robbery has not been demonstrated due to their failure to explain their spending spree at the relevant time. The applicants have therefore failed to demonstrate that their release on bail pending trial will not defeat the ends of justice. They are facing a serious allegation of robbery where a firearm was used. Huge sums of money went missing. They have failed to demonstrate that the State has a weak case by failing to explain their liberal spending at the critical time. The application for bail pending trial is therefore dismissed for lack of merit.

Machaya & Associates, applicants' legal practitioners
National Prosecuting Authority, respondent's legal practitioners